

#	Case Name	Tentative
51.	Sanchez v. Perez 2022-01275016	Plaintiff Rigoberto Sanchez's motion to enforce the judgment is DENIED without prejudice. There is no proof of service on the motion. Further, plaintiff already has a money judgment. Plaintiff is encouraged to consult with the court's self-help desk concerning enforcement of money judgments, and proofs of service. The clerk shall give notice.
52.	Bernadette Jean McCann as trustee for The Bernadette Jean McCann under instrument dated November 18, 2019 v. Rubicon Builders & Development, Inc. 2025-01488820	Defendants Rubicon Builders & Development, Inc., Liat Natan, and Ofir Chanael's Motion to Compel Arbitration is GRANTED. (Code Civ. Proc. §1281.2.) Plaintiff Bernardette Jean McCain individually and as trustee for The Bernardette Jean McCann 2019 Trust for the Benefit of Bernardette Jean McCann under instrument dated November 18, 2019 shall submit her claims against Defendants Rubicon Builders & Development, Inc., Liat Natan, and Ofir Chanael to binding arbitration pursuant to the terms of the agreement to arbitrate contained in the Home Improvement Contract dated August 13, 2024 (see ROA 19, Ex. A) and subject to the modifications to the agreement provided in this Order. The remainder of this Action is STAYED upon the filing by plaintiff of proofs of service on Defendants Agape Civil Engineering, Inc. and Stephen Miller, RCE. Any stay is without prejudice to Defendants Agape Civil Engineering, Inc. and Stephen Miller, RCE moving to compel Plaintiff to arbitrate her claims. Any stay is also subject to further order of this Court. A Status Conference RE Binding Arbitration is set for January 29, 2027 at 9:00 a.m. in Department C28. Five days before the status conference, the parties are ORDERED to file a joint status conference statement. The case management conference is VACATED. <u>General Legal Standard</u> A party seeking to compel arbitration must demonstrate the existence of a written agreement to arbitrate the controversy by preponderance of the evidence, and the party resisting arbitration bears the burden of proving any defense to enforcement. (Code Civ. Proc., § 1281.2; <i>Engalla v.</i>